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National Service Corps Act, 2027

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7

Act No. 10 of the year 2027

An Act Made to Provide for the National Service Corps

Preamble: Whereas it is desirable to give military training to the students of Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in order to further awaken the spirit of loyalty to the country Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., develop a sense of national service, make them capable and disciplined citizens, and enhance their leadership capacity,

Therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title, Extent and Commencement: (1) This Act may be called the ?National Service Corps Act, 2072?.

(2) This Act shall extend to the whole of Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,?

(a) ?Corps? means the National Service Corps constituted under this Act.

(b) ?University? means a university established in Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. under the prevailing Nepal law, and the said term also denotes a college affiliated with such university.

(c) ?School? means a secondary level educational institution recognized by the Government of Nepal.

(d) ?Unit? means from the battalion to the platoon of the Corps.

(e) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in the rules made under this Act. 3. Constitution and Dissolution of the Corps: (1) The Government of Nepal shall constitute one Corps.

(2) The Government of Nepal may, as required, constitute one or more Units of the Corps in such districts as it may specify.

(3) In the Units of the Corps constituted under sub-section (2), students of universities or schools shall be enrolled.

(4) The Government of Nepal may dissolve or reconstitute any Unit constituted under sub-section (2). 4. Divisions of the Corps: The Corps shall have the following divisions:?

(a) Senior Division, and

(b) Junior Division. 5. Enrolment: A student of a university who possesses the prescribed qualifications may be enrolled in the Senior Division of the Corps, and a student of a school may be enrolled in the Junior Division of the Corps. 6.

Removal from the Corps: A person enrolled in the Corps shall be removed from the Corps in the following circumstances: (a) if enrolled for a fixed period, upon the expiry of that period, or (b) if the person ceases to be a student of a university or school, or (c) if removed as prescribed. 7. Appointment of Officers: (1) The Government of Nepal may appoint any employee of a university or school, or any other person, as an officer for the Corps or for any Unit of the Corps. (2) The powers, duties and functions of an officer appointed under sub-section (1) shall be as prescribed. 8. No Compulsion for Military Service: A person enrolled in the Corps under this Act shall not be compelled to serve in the military service merely by reason of being enrolled in the Corps. Provided that such a person shall perform such duties as prescribed. 9. Fine: If any person enrolled in the Corps under this Act commits any act contrary to this Act or the rules made under this Act, the prescribed authority may impose a fine of up to Rs. 100. (one hundred), which shall be recovered as prescribed. 10. Advisory Committee: The Government of Nepal may constitute an Advisory Committee as prescribed to advise on policy matters relating to the administration and organization of the Corps. 11. Recognition: The National Service Corps already in existence at the time of the commencement of this Act shall be deemed to have been constituted under this Act. 12.

Power to Make Rules: (1) The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. (2) Without prejudice to the power conferred by sub-section (1), such rules may provide for the following matters: (a) qualifications of persons to be enrolled in a Unit, (b) the manner, conditions and period of enrolment in a Unit, (c) medical examination of persons desiring to be enrolled in a Unit, (d) giving of initial and periodic military training to persons enrolled in a Unit, (e) military or other duties to be observed by persons enrolled in a Unit during the period of military training, (f) discipline generally to be observed by persons enrolled in a Unit, (g) public works and duties to be performed by persons enrolled in a Unit, (h) provision of certificates or identity cards, (i) remuneration and allowances for officers appointed under section 7 of this Act, (j) removal of persons enrolled in the Corps under this Act, (k) recovery of fines imposed under this Act, (l) powers, duties and functions of the Advisory Committee constituted under this Act, (m) other matters prescribed or required to be prescribed under this Act, (n) providing such facilities as prescribed to the male and female students of the Corps.